

WRONGFUL ELIMINATION CASE

Cover Page

- **Your Name:** Myrna Ramirez-Thomas
- **Case Reference:** Employment Dispute – National City School District
- **Date Range Covered:** [Start Date] to [End Date]
- **Last Updated:** 3/10/2026

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Employee Information

Field	Value
Full Name	Myrna Ramirez-Thomas
Job Title/Position	School Welfare and Attendance Specialist
Employee ID Number	
Department/School Location	National City School District

Field	Value
Hire Date	25 years of service
Union	CSCA

Important Notes

- Dr Vargas has not done an evaluation of Myrna Ramirez-Thomas's work in the 4 years that he has been in the role of supervisor.
- No votes for the Behavior Intervention Instructional Assistant position that they are trying to get her to interview and accept.
- **Myrna's Mission:** Doing what is right for the families (need resources) makes a difference.
- Years since not reporting 2016-2018 to District Attorneys

Medical & Leave Status

Date	Event	Details	Supporting Documents
Oct 23	Last day of work		
Oct 24	Day of surgery		
Oct 24	Start of FMLA		
Oct 24 - December 11	Dr signed off on leave		
December 11 - June 11	Dr return to work date extended during these dates because of the chemo treatments		
April 6	Myrna's planned return to work date		

Chronological Event Log

Date	Time	Location	People Present	What Happened	My Response	Evidence Attached
February 26	3:25pm	Phone Call		Call from Dr Vargas, Dr Koeppen, Charlen Barajas, and Mona Rios who informed me that my current position would be eliminated. During this conversation, I was encouraged to apply for an alternative position titled Behavior Intervention Instructional Assistant, with an application deadline of March 7 at 12:00 PM. The representative provided two primary justifications for the elimination of my role. First, they explained that the district no longer refers cases to the district attorney, which was reportedly a core function of my original position.		

Date	Time	Location	People Present	What Happened	My Response	Evidence Attached
				Second, they stated that many of the responsibilities outlined in my job description would be absorbed by Teacher on Special Assignment (TOSA) teachers and office technicians.		
March 6				I applied to the position.		
March 5				Chemo treatment.		
March 9		Email		Emailed Dr Leighangela Brady (Superintendent) to state her case and ask for her support.		
March 9	2:18pm	Phone Call		Elizabeth Huato called and offered me an in person interview.	Declined as I am trying to recover from chemo therapy.	
March 9	3:11pm	Phone Call		Called to try and set up a virtual interview.	Declined as I am trying to recover from chemo therapy.	

Date	Time	Location	People Present	What Happened	My Response	Evidence Attached
March 10	9:35am	Text Message		Dr Vargas reached out through text and asked if I was available to meet for a virtual interview.		
March 10				Evelyn gonzalez reached out 2 times via phone call and text message.		
March 10	10:00am			Evelyn gonzalez reached out to my niece. Natalia Ojeda-Rubalcaba asking to help her get a hold of me for an urgent matter.		
March 10	12:49pm			Call from Human Resources		

Timeline Visual

- **Hire Date:** 2001
- **Diagnosis Date:** First surgery October 24th
- **FMLA Start Date:** October 24th
- **First Pressure Incident:** Febuary 26th
- **Board Meeting Scheduled:** March 11th

Comparison of Assigned Duties vs. Actual Work Performed

Assigned Duties	Actual Work Performed
	SART Meetings
	Meeting with parents
	Home visits

- Reaching out to parents for Board Meeting support (show the change myrna has made).
 - SARB meetings has to chair those meetings doesnt like meeting SRO's from NC, family resource center, parent
 - "they keep coming back"
 - Counselor's are busy SART (myrna, counselor, principal, parent, office tech) usually only Myrna or if lucky office tech
 - Mryna gives a sense of being heard and getting their concerns addressed
 - Helps solve issues
 - Serves as a counselor for parents and children (no social worker)
 - Her safety in jeopardy

Impact

*numerical impact

- I am the only person doing this job in the school district that oversees 10 schools and X student's attendance.
- Attendace reports?

Expected Attendance for Board Meeting

Parents -

1. Nubia
2. Angelica

Office Tec's -

1. Liz

Evidence Attachments Index

1. Email correspondence (dates, subjects)
2. Medical documentation (FMLA forms, doctor notes)
3. Meeting notes/memos
4. Screenshots of texts/emails
5. Policy documents/handbook excerpts
6. Witness statements (if any)

Policy & Contract References

Policy/Contract Section	Description	How It Was Violated	Page/Section #
FMLA Regulations	Protection during medical leave	Interference with leave rights	29 CFR § 825
CA FEHA	Disability discrimination	Adverse action due to cancer diagnosis	Gov. Code § 12940
Union Contract Article X	Termination procedures	No due process before board vote	Section 4.2

Next Steps

1. Set up a dedicated folder on your personal computer/cloud >
2. Begin populating the Event Log with everything you remember >
3. Gather all existing emails/documents
4. Schedule consultation with employment attorney
5. Contact union representative: Leo

Last Updated: 3/10/2026

Document Owner: Myrna Ramirez-Thomas